

HOUSE No. 4910

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, January 12, 2026.

The committee on Children, Families and Persons with Disabilities, to whom was referred the petition (accompanied by bill, House, No. 201) of Christine P. Barber, Jennifer Balinsky Armini and others relative to child support enforcement, reports recommending that the accompanying bill (House, No. 4910) ought to pass.

For the committee,

JAY D. LIVINGSTONE.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to bring child support home.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 18 of the General Laws is hereby amended by striking section 18A
2 and inserting in place thereof the following new section:-

3 Section 18A. (a)(1). The department shall impose the sanction required by federal law on
4 any recipient of public assistance funded under Title IV-A of the Social Security Act who,
5 without good cause, does not cooperate with the IV-D agency specified in chapter 119A to
6 establish paternity or to establish, modify, or enforce a child support order on behalf of a child
7 for whom the recipient receives such public assistance. An applicant or recipient may contest
8 such sanction at a hearing before the department, but shall have the burden to prove cooperation
9 with the IV-D agency by a preponderance of the evidence.

10 (2) The IV-D agency shall determine whether an applicant or recipient has cooperated,
11 and is continuing to cooperate, with the IV-D agency. An applicant or recipient shall be deemed
12 not to have cooperated if the applicant or recipient fails, without such good cause, to furnish a
13 sworn statement setting forth sufficient verifiable information about the noncustodial parent or, if

more than one person may be the noncustodial parent, about each such person. Such information shall include the name and the social security number of the noncustodial parent, or the name of the noncustodial parent and at least two of the following items for the noncustodial parent: date of birth; address; telephone number; name and address of employer; names of parents; and the manufacturer, model and license number of any motor vehicle owned by the noncustodial parent. An applicant or recipient who knowingly provides false information to the IV-D agency shall be subject to prosecution for perjury.(3) The department shall determine that a recipient has good cause for not cooperating with the IV-D agency for purposes of this section if:

(A) The child was conceived as a result of incest or rape;

(B) Proceedings for the adoption of the child are pending or under consideration;

(C) Cooperation risks discouraging the noncustodial parent or other relatives of the child from maintaining a relationship with the child or providing emotional or other support;

(D) Cooperation risks physical or emotional harm to or retaliation against the child or the relative with whom the child resides; or

(E) Cooperation is otherwise not in the child's best interest.

SECTION 2. Section 2 of chapter 118 of the General Laws is hereby amended by inserting at the end of the first paragraph the following:-

Beginning July 1, 2027, the first \$100 per month collected for one child in a family who is a recipient of benefits under this chapter and the first \$200 per month collected for two or more children in a family who are recipients of benefits under this chapter shall be paid to the family and disregarded in determining the family's countable income.

SECTION 3. Section 2 of chapter 119A of the General Laws is hereby amended by inserting at the end of subsection (b) the following:- Pursuant to Title IV, Part D of the Social Security Act, in the case of former recipients of assistance, the first \$100 per month collected for one child in a family who is a recipient of benefits under this chapter and the first \$200 per month collected for two or more children in a family who are recipients of benefits under this chapter shall be paid to the family by the IV-D agency and disregarded in determining the family's countable income for all support payments collected, including payments on arrears assigned to the state and payments collected through the federal tax refund offset.